Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

**Newanforbi v. Derrick, et al.**
6 messages

**Jeffery C. Long** <Jeffery.Long@llg-law.com>
To: bnn.cdl@gmail.com <bnn.cdl@gmail.com>

Thu, Feb 19 at 5:19 PM

Mr. Newanforbi:

We have been retained to represent Ms. Katie Palacio in the lawsuit you have filed in the United States District Court for the Eastern District. We have not been able to determine whether our client was properly served with the lawsuit. If you contend she has been properly served, can you please provide us with either an executed Proof of Service and/or the Declaration of Service from the process server (or whoever else) actually served her?

Thank you in advance for your anticipated cooperation. Please note all my contact information is below if you need to connect with me about this case.

Jeffery C. Long
Admitted CA | NV
**LEVANGIE LONG LOORZ**
2969 Prospect Park Drive, Suite 125
Rancho Cordova, CA 95670
(916) 443-4849 (Main Office)
(916) 873-1189 (Direct Line)
(916) 743-6038 (Mobile)
www.llg-law.com




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---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Thu, Feb 19 at 5:59 PM
To: Jeffery C. Long <Jeffery.Long@llg-law.com>

Mr. Long,

Thank you for contacting me regarding this matter.

On January 30, 2026, I mailed a service packet to Ms. Palacios at her official duty station — the HOPE Program, 5403 N. Pershing Avenue, Suite 200, Stockton, CA 95207 — pursuant to California Code of Civil Procedure § 415.30.

The packet included a Clerk-issued summons, the file-stamped First Amended Complaint, two copies of the Notice and Acknowledgment of Receipt (Form POS-015), and a prepaid return envelope. I have a USPS eReceipt confirming the mailing. As of today, I have not received the signed acknowledgment of receipt.

Since you now represent Ms. Palacios, I would respectfully ask that you facilitate the return of the signed POS-015 form so that service may be completed under § 415.30(c). This would resolve any outstanding service questions without the need for further motion practice or alternative service methods.

I am available to provide copies of the mailing documentation and my filed declaration (ECF No. 10) if that would be helpful.

Respectfully,

Brendan Ngehsi Newanforbi
Plaintiff, Pro Se
(209) 801-4442
bnn.cdl@gmail.com

[Quoted text hidden]

---

**Jeffery C. Long** <Jeffery.Long@llg-law.com> Fri, Feb 20 at 9:30 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Thank you Mr. Newanforbi.

I am meeting with my client next week and I will procure the signed Notice and Acknowledgement of Receipt and return to you by the end of the week.
[Quoted text hidden]
[Quoted text hidden]

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This email has been scanned for spam and viruses by Proofpoint Essentials. Click here to report this email as spam.

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, Feb 20 at 2:02 PM
To: Jeffery C. Long <Jeffery.Long@llg-law.com>

Mr. Long,

Thank you.

I appreciate your cooperation in facilitating the return of the signed Notice and Acknowledgment of Receipt. I will look for it by the end of next week.

Please feel free to mail it to:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Or you may email a scanned copy to bnn.cdl@gmail.com if that is more convenient.

Respectfully,

[Quoted text hidden]

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, Feb 27 at 2:54 PM
To: Jeffery C. Long <Jeffery.Long@llg-law.com>

Good afternoon Mr. Long,

I hope you are doing well.

I am following up regarding your February 20 email in which you indicated you would meet with your client and return the signed Notice and Acknowledgment of Receipt by the end of the week.

I have not yet received the signed POS-015 and wanted to check in to see whether you were able to obtain it, or if there is any update on timing for its return.

Please feel free to email a scanned copy or mail the original — either method works fine.

Thank you again for your cooperation, and I look forward to your update.

[Quoted text hidden]

---

**Jeffery C. Long** <Jeffery.Long@llg-law.com> Fri, Feb 27 at 3:02 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Bryan Malone <bryan@sims-law.net>

Brendan:

This matter was transferred to another attorney and law firm. Please contact Bryan Malone regarding the status of the signed document. He is included on this e-mail and his e-mail addess is: bryan@sims-law.net

[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Derrick, et al. – Service on Ms. Palacios (POS-015)

5 messages

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, Feb 27 at 3:30 PM
To: <bryan@sims-law.net>

Mr. Malone,

I hope you are doing well.

I am writing regarding service of process on Defendant Katie Palacios in Newanforbi v. Derrick, et al., Case No. 2:26-cv-00004-DJC-JDP (E.D. Cal.).

On January 30, 2026, I served Ms. Palacios by mail pursuant to California Code of Civil Procedure § 415.30 by sending a service packet to her official duty station at the HOPE Program, 5403 N. Pershing Avenue, Suite 200, Stockton, CA 95207. The packet included:

- A Clerk-issued summons directed to Ms. Palacios;
- A file-stamped copy of the First Amended Complaint (ECF No. 5);
- Two copies of the Notice and Acknowledgment of Receipt (Judicial Council Form POS-015); and
- A self-addressed, prepaid return envelope.

I filed a declaration in support of my Opposition to the Motion to Quash (ECF No. 10) describing that mailing and attaching the USPS eReceipt. As of today, I have not received a signed POS-015 from Ms. Palacios.

On February 20, 2026, Mr. Jeffery Long informed me by email that he would be meeting with his client and would "procure the signed Notice and Acknowledgement of Receipt and return to you by the end of the week." Later, on February 27, he advised that representation of Ms. Palacios had been transferred to you and your firm.

Given this history, I wanted to confirm how you wish to proceed:

1. Will your client execute and return the Notice and Acknowledgment of Receipt (POS-015) for the January 30, 2026 mailing so that service may be completed under § 415.30(c)? If so, I am happy to resend the POS-015 by email for convenience.
2. If your client does not intend to acknowledge service under § 415.30, please let me know, so that I can promptly seek appropriate relief from the Court (e.g., an order under Rule 4(m) and/or alternative service).

My goal is simply to resolve any outstanding service issues efficiently and avoid unnecessary motion practice where possible. Please feel free to respond by email, and I can provide copies of the January 30 service materials and my filed declaration if that would be helpful.

Thank you for your attention to this matter.

Respectfully,

Brendan Ngehsi Newanforbi
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
bnn.cdl@gmail.com

**Bryan Malone** <bryan@sims-law.net> Fri, Feb 27 at 4:26 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good afternoon, Mr. Newanforbi.

Thank you for your email. Nice to "meet" you.

Correct; our office is coming on board as counsel for Ms. Palacios and HOPE Program. I am adding the members of our team as ccs on this new case for you: Cynthia Lawrence (attorney), June Meinecke (paralegal), Kim Schmitt (legal assistant) and Amber Krausse (administrative assistant) here . Please include them on all future communications to ensure proper receipt. We receive hundreds of emails and want to make sure nothing is missed. Thank you in advance.

I will review Mr. Long's file and download the federal docket to review everything here and get up to speed. If you could email me your January 30 service materials and declaration in the meantime, I would appreciate it. Thank you for that offer. I should be able to then review, meet with Ms. Palacios, and give you an answer within the next several days.

Also, it is my understanding that you recently filed a related state court action in San Joaquin Superior Court as well. Has that one been served?

Bryan

Thank you,

Bryan L. Malone

Sims, Lawrence & Broghammer

1478 Stone Point Drive, Suite 450

Roseville, CA 95661

(916) 797-8881

(916) 719-0363 (cellular)

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---

**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Friday, February 27, 2026 3:30 PM
**To:** Bryan Malone <bryan@sims-law.net>
**Subject:** Newanforbi v. Derrick, et al. – Service on Ms. Palacios (POS-015)

You don't often get email from bnn.cdl@gmail.com. Learn why this is important

[Quoted text hidden]

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, Feb 27 at 5:55 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>, <slb-eservice@sims-law.net>

Mr. Malone,

Thank you for your response, and nice to meet you as well.

I will include you and your team on future communications as requested.

Attached are the January 30, 2026 service materials for Ms. Palacios, including:

- the service packet (summons, First Amended Complaint, and POS-015 Notice and Acknowledgment of Receipt);
- my filed declaration describing the mailing and service efforts; and
- the USPS eReceipt reflecting mailing of the service packets.

As reflected in my declaration, the service packet was mailed to Ms. Palacios at her official duty station pursuant to California Code of Civil Procedure § 415.30, and service will be complete upon execution and return of the POS-015.

To answer your question regarding the related state court action:

- I obtained a fee waiver and submitted the service packet to the San Joaquin County Sheriff, who effectuated service on February 19, 2026. I am currently awaiting issuance/return of the POS-010 proof of service.
- As to HOPE Psychotherapy, Inc., I mailed the service packet together with the fee waiver to the Alameda County Sheriff Civil Division on February 25, 2026, and service is presently in progress.

I appreciate your cooperation and look forward to your response within the next several days. Thank you.

Respectfully,

Brendan Ngehsi Newanforbi
Plaintiff, Pro Se
(209) 801-4442
bnn.cdl@gmail.com
[Quoted text hidden]
Complaint - Newanforbi v. Katie Palacios, et al..pdf, State Case Assignment .pdf, State Summons.pdf, Civil File Details - CountySuite Public Search.pdf, USPS eReceipt - State Tort mailing.pdf, Re-service_Derrick_et_al.pdf, Declaration of service in Opposition to Quash.pdf, USPS eReceipt - Derrick, et al..pdf

---

**Bryan Malone** <bryan@sims-law.net> Tue, Mar 3 at 2:25 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <SLB-eservice@sims-law.net>

Good afternoon, Mr. Newanforbi.

I have a meeting scheduled with Ms. Palacios and anticipate having the signed NAR to you by the end of the week. Thank you.

Regarding your state case (San Joaquin), I will reach out soon to meet and confer further when I have more information from Ms. Palacios and HOPE. But, off the top of my head, why did you file two separate actions? The underlying facts appear similar and closely related to your pleading in the federal

case.

[Quoted text hidden]

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, Mar 3 at 3:00 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <SLB-eservice@sims-law.net>

Good afternoon, Mr. Malone.

Thank you for the update. I appreciate your diligence in scheduling the meeting with Ms. Palacios and look forward to receiving the executed Notice and Acknowledgment of Receipt by end of week as anticipated.

I also want to inform you that the San Joaquin County Sheriff's Civil Division effectuated personal service on Ms. Palacios on February 24, 2026, at 5403 N. Pershing Ave., Stockton, CA 95204. The Proof of Service of Summons (POS-010), signed by Sheriff's Authorized Agent Patrick Withrow, was filed with the San Joaquin County Superior Court today, March 3, 2026. I have attached a copy for your records.

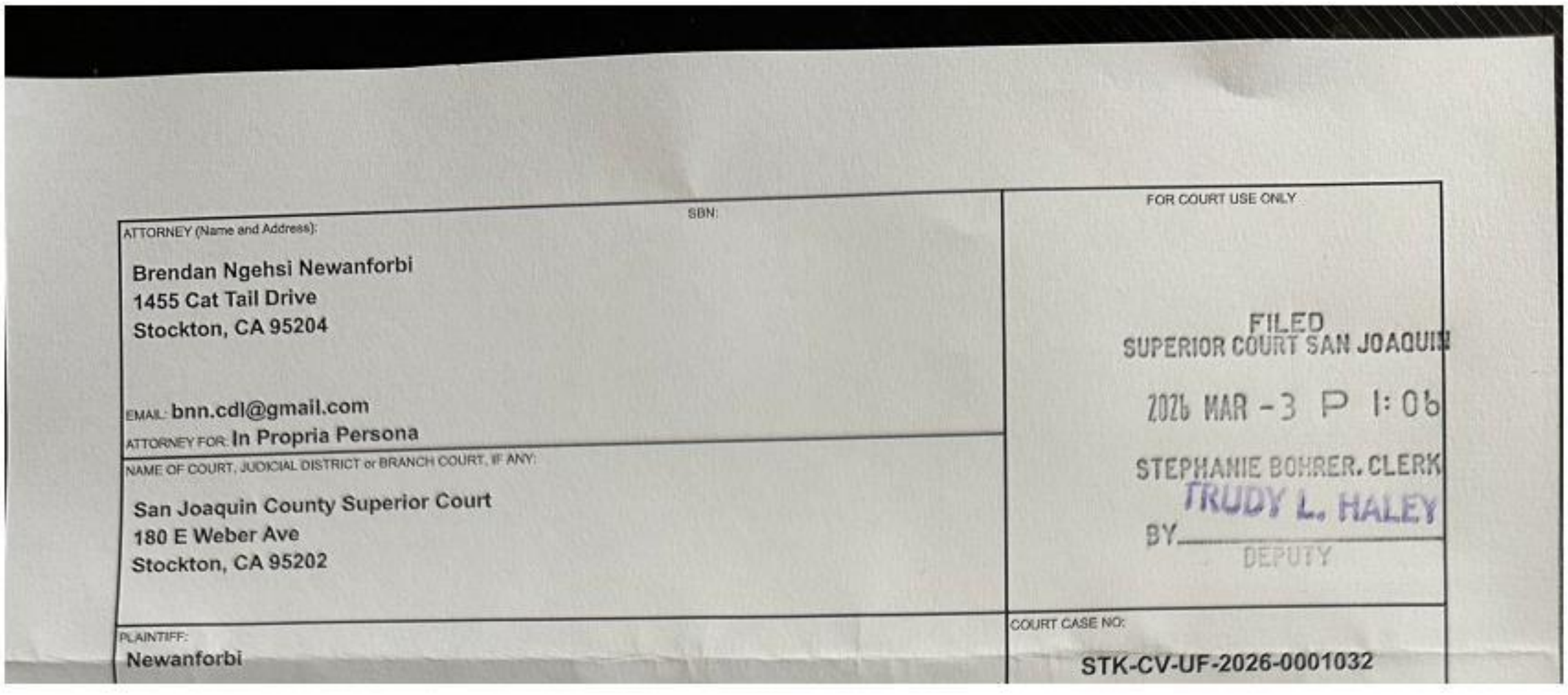
Regarding your question about why I filed two separate actions: the cases are related in subject matter, but they are legally distinct and involve different defendants, different legal theories, and different forums.

The federal action (Case No. 2:26-cv-00004-DJC-JDP) is brought under 42 U.S.C. § 1983 against state officials — Agent Derrick and Supervisor Noguchi (CDCR employees) — and Ms. Palacios in her individual capacity as a state actor. The claims are exclusively constitutional in nature (First Amendment retaliation, Equal Protection, and Substantive Due Process) and arise from the conduct of those individuals under color of state law.

The state court action (Case No. STK-CV-UF-2026-1032) is brought against HOPE Psychotherapy, Inc. as a corporate entity and Ms. Palacios in her capacity as its Director. The claims are state tort claims — fraud, negligence, false imprisonment, IIED, and interference with prospective economic advantage — arising from HOPE's blanket retention policy, which I allege is an institutionalized practice predetermining non-completion regardless of individual clinical progress. The two actions involve overlapping facts but address distinct wrongs by distinct legal persons under distinct legal frameworks. Filing them together in a single action would have raised serious jurisdictional, joinder, and immunity complications.

I am happy to discuss any procedural questions you may have as you get up to speed. Please feel free to reach out.

Respectfully,



| ATTORNEY (Name and Address): SBN: | FOR COURT USE ONLY |
|---|---|
| Brendan Ngehsi Newanforbi<br>1455 Cat Tail Drive<br>Stockton, CA 95204<br><br>EMAIL: bnn.cdl@gmail.com<br>ATTORNEY FOR: In Propria Persona | FILED<br>SUPERIOR COURT SAN JOAQUIN<br>2026 MAR -3 P 1:06<br>STEPHANIE BOHRER, CLERK<br>BY TRUDY L. HALEY DEPUTY |
| NAME OF COURT, JUDICIAL DISTRICT or BRANCH COURT, IF ANY:<br>San Joaquin County Superior Court<br>180 E Weber Ave<br>Stockton, CA 95202 | |
| PLAINTIFF:<br>Newanforbi | COURT CASE NO:<br>STK-CV-UF-2026-0001032 |

| DEFENDANT: Palacios, et al. | |
|---|---|
| **Proof of Service of Summons** | LEVYING OFFICER FILE NO: **2026000749** |

1. At the time of the service I was at least 18 years of age and not a party to this action.
2. I served copies of the:
   f. other *(specify documents)*:
   **Exhibit A, Exhibit B, Exhibit C, Notice of Case Assignment and Notice of Hearing, Summons and Complaint**
3. a. Party Served *(specify name of party as shown on documents served)*:
   **Katie Palacios**
4. Address where party was served: **5403 N Pershing Ave**
   **Stockton, CA 95204**
5. I served the party:
   a. **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on: 02/24/2026 at: 11:43 AM.
6. the "Notice to the Person Served" (on the summons) was completed as follows:
   a. as an individual defendant.
7. **Person who served the papers:**
   a. Name: **G. Fasano**
   b. Address: **Civil Division, 400 East Main Street, Suite 760, Stockton, CA 95202**
   c. Telephone number: **Phone:(209) 468-4475**
   d. **The fee** for service was: **$50.00 (Waiver)**
9. **I am a California sheriff or marshal and** I certify that the foregoing is true and correct.

**Date:** Wednesday, February 25, 2026

**by:** _____

Sheriff's Authorized Agent
Patrick Withrow


(c) CourtScribe Sheriff, Teleosoh, Inc.

Brendan Ngehsi Newanforbi
(209) 801-4442
bnn.cdl@gmail.com
[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Service Materials and Notice of Related CASOMB Investigation

2 messages

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, Mar 6 at 9:19 AM
To: Bryan Malone <bryan@sims-law.net>
Cc: SLB eservice <slb-eservice@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Dear Mr. Malone,

I hope you are well. I am writing to transmit two newly mailed, soon-to-be-filed documents in the above-captioned matter, both of which I have served on you and your team by email on March 5, 2026, consistent with your electronic-service instructions reflected in my prior correspondence and certificates of service.

Specifically, I have attached:

1. Notice of Related Regulatory Investigation by CASOMB

2. Declaration of Brendan Ngehsi Newanforbi Regarding Good-Faith Service Efforts on Defendant Katie Palacios and Actual Notice to Defense Counsel

As set out in the Notice, the CASOMB complaints committee has opened an active review of my complaint concerning the HOPE Program and Ms. Palacios, and that review substantially overlaps with the factual allegations and causes of action in this case. The Declaration documents my diligent efforts to complete service on Ms. Palacios under California Code of Civil Procedure section 415.30, as well as your firm's actual notice of the summons, First Amended Complaint, POS-015, and related materials.

Given your March 3, 2026 representation that you anticipated having the signed Notice and Acknowledgment of Receipt (POS-015) to me by the end of this week, I wanted to ensure you have these additional filings for your records and for discussion with your client. If you are able, I would appreciate a brief update on the status of the executed POS-015 or any alternative approach you propose for resolving the outstanding service issue without unnecessary motion practice.

Thank you for your continued cooperation and professionalism.

Sincerely,

Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per
(209) 801-4442
bnn.cdl@gmail.com
Declaration of Good-Faith Service.pdf, Notice of Regulatory Investigation.pdf

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, Mar 6 at 9:30 AM
To: Bryan Malone <bryan@sims-law.net>
Cc: SLB eservice <slb-eservice@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good morning, Mr. Malone.

The previous attachments did not include the associated exhibits. Please see complete filings attached below.

Thank you,

Brendan
[Quoted text hidden]
Declaration of Good-Faith Service.pdf, Notice of Regulatory Investigation.pdf

# Newanforbi RE: Service Materials and Notice of Related CASOMB Investigation

5 messages

**Bryan Malone** <bryan@sims-law.net> Fri, Mar 6 at 3:45 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: SLB eservice <SLB-eservice@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good afternoon, Mr. Newanforbi.

Apologies, but I did not realize Ms. Palacios is out today. We will have her signed notice and acknowledgement of receipt (NAR) form for you on Monday.

By the way, the NAR form you served on Ms. Palacios is blank. We are having her complete and sign the bottom half of the form (only). You will need to complete the top half of the form because you are the plaintiff, then fill in the date of your mailing, and sign. I hope that makes sense.

After you each complete your portions, I'd appreciate it if you would send us back a "fully completed" version for our file.

Have a good weekend.

Bryan

Thank you,

Bryan L. Malone

Sims, Lawrence & Broghammer

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Roseville, CA 95661

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(916) 719-0363 (cellular)

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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Friday, March 6, 2026 9:31 AM
**To:** Bryan Malone <bryan@sims-law.net>
**Cc:** SLB eservice <SLB-eservice@sims-law.net>; Cynthia Lawrence <cynthia@sims-law.net>; June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>; Amber Krausse <Amber@sims-law.net>
**Subject:** Re: Service Materials and Notice of Related CASOMB Investigation

Good morning, Mr. Malone.

The previous attachments did not include the associated exhibits. Please see complete filings attached below.

Thank you,

Brendan

On Fri, Mar 6, 2026 at 9:19 AM Brendan Ngwa Nforbi <bnn.cdl@gmail.com> wrote:

> Dear Mr. Malone,
>
> I hope you are well. I am writing to transmit two newly mailed, soon-to-be-filed documents in the above-captioned matter, both of which I have served on you and your team by email on March 5, 2026, consistent with your electronic-service instructions reflected in my prior correspondence and certificates of service.
>
> Specifically, I have attached:
>
> 1. Notice of Related Regulatory Investigation by CASOMB
>
> 2. Declaration of Brendan Ngehsi Newanforbi Regarding Good-Faith Service Efforts on Defendant Katie Palacios and Actual Notice to Defense Counsel
>
> As set out in the Notice, the CASOMB complaints committee has opened an active review of my complaint concerning the HOPE Program and Ms. Palacios, and that review substantially overlaps with the factual allegations and causes of action in this case. The Declaration documents my diligent efforts to complete service on Ms. Palacios under California Code of Civil Procedure section 415.30, as well as your firm's actual notice of the summons, First Amended Complaint, POS-015, and related materials.
>
> Given your March 3, 2026 representation that you anticipated having the signed Notice and Acknowledgment of Receipt (POS-015) to me by the end of this week, I wanted to ensure you have these additional filings for your records and for discussion with your client. If you are able, I would appreciate a brief update on the status of the executed POS-015 or any alternative approach you propose for resolving the outstanding service issue without unnecessary motion practice.
>
> Thank you for your continued cooperation and professionalism.
>
> Sincerely,
>
> Brendan Ngehsi Newanforbi
>
> Plaintiff, In Pro Per
>
> (209) 801-4442
>
> bnn.cdl@gmail.com

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, Mar 9 at 8:44 AM
To: Bryan Malone <bryan@sims-law.net>
Cc: SLB eservice <SLB-eservice@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

> Good morning, Mr. Malone.
>
> Thank you for your email and for the clarification on the Notice and Acknowledgment of Receipt (NAR/POS-015) form. I understand completely—Ms. Palacios will complete and sign only the bottom half, and I will promptly complete the top

half (as plaintiff), insert the mailing date, and add my signature once I receive it.

Thank you again for your help in getting this resolved efficiently. Please let me know if there is anything else I can provide on my end in the meantime.

Have a great Monday.

Sincerely,
[Quoted text hidden]

---

**Kim Schmitt** <kschmitt@sims-law.net> Mon, Mar 9 at 2:59 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Newanforbi, attached please find the signed Notice and Acknowledgment of Receipt. Please provide us with a fully completed copy.


Kim Schmitt

Legal Secretary

**SIMS, LAWRENCE & BROGHAMMER, LLP**

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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Monday, March 9, 2026 8:45 AM
**To:** Bryan Malone <bryan@sims-law.net>
**Cc:** SLB eservice <SLB-eservice@sims-law.net>; Cynthia Lawrence <cynthia@sims-law.net>; June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>; Amber Krausse <Amber@sims-law.net>
**Subject:** Re: Newanforbi RE: Service Materials and Notice of Related CASOMB Investigation

You don't often get email from bnn.cdl@gmail.com. Learn why this is important

[Quoted text hidden]
Ntc and Ack of Receipt.pdf

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, Mar 9 at 4:16 PM
To: Kim Schmitt <kschmitt@sims-law.net>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good afternoon Ms. Schmitt,

Thank you for sending the signed Notice and Acknowledgment of Receipt.

Attached please find the fully completed POS-015 reflecting the original mailing date and my signature as the sender. I appreciate your assistance in getting this resolved efficiently. Please let me know if you need anything further for your file.

Regards,

[Quoted text hidden]
Ntc and Ack of Receipt 1.pdf

---

**Kim Schmitt** <kschmitt@sims-law.net> Mon, Mar 9 at 4:53 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Thank you.

[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

**PRIVILEGED & CONFIDENTIAL SETTLEMENT COMMUNICATION (FRE 408 / CEC 1152) – Case Nos. 2:26-cv-00004-DJC-JDP & STK-CV-UF-2026-1032**

2 messages

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, Mar 16 at 8:00 AM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Dear Mr. Malone,

Thank you for your firm's continued professionalism and cooperation in these matters, including the prompt execution of the Notice and Acknowledgment of Receipt (POS-015), which has completed service in the federal action. Your responsiveness reinforces my belief that both sides share an interest in achieving an efficient, amicable resolution rather than protracted litigation across two forums.

Before the parties expend significant resources on formal discovery, depositions, expert retention, and dual-track motion practice, I am writing to propose a global settlement that fully and finally resolves all claims against Katie Palacios—in both her individual and Clinical Director capacities—and HOPE Psychotherapy, Inc. in the following actions:

**1.** *Newanforbi v. Palacios, et al.*, San Joaquin Superior Court, Case No. STK-CV-UF-2026-1032 (state tort action: fraud, negligence, false imprisonment, IIED, and interference with prospective economic advantage); and

**2.** *Newanforbi v. Derrick, et al.*, E.D. Cal., Case No. 2:26-cv-00004-DJC-JDP (federal §1983 action, solely as to Ms. Palacios).

## I. PROPOSED SETTLEMENT TERMS

### A. Monetary Consideration: $450,000 Lump Sum

A one-time lump-sum payment of $450,000.00, payable via wire transfer within twenty-one (21) days of execution of a formal settlement agreement and filing of dismissals. The payment shall be allocated to maximize tax-exempt treatment under applicable IRS rules and regulations, structured as follows:

**Non-economic damages** (emotional distress, loss of liberty, reputational harm, false imprisonment, and related non-physical personal injury): The majority of the settlement amount, intended to qualify as tax-exempt under IRC § 104(a)(2).

**Economic damages** (lost wages and back pay): The balance, reportable as income with appropriate W-2 or 1099 coordination.

I will provide a proposed allocation schedule for your review and approval prior to finalizing the agreement. The final allocation shall be mutually agreed upon and documented in the settlement agreement to ensure accurate IRS reporting and compliance with Rev. Rul. 85-98 and related guidance. Neither party shall be deemed to have provided tax advice.

**B. Non-Monetary Relief: Treatment Completion Certificate**

HOPE Psychotherapy, Inc. shall issue, within fourteen (14) days of payment, a formal Certificate of Completion (on HOPE letterhead, signed by an authorized clinical director) confirming that Plaintiff has successfully completed sex-offender treatment based on an individualized clinical assessment consistent with the following authorities:

Title 15 CCR § 3574(f)(1), which provides that "treatment completion and parole discharge are legally separate decisions";

California Penal Code § 3008(d)(2);

The CASOMB Treatment Completion Guidelines (2018), requiring individualized assessment of risk level, criminogenic needs, and individual factors.

This certificate shall be suitable for immediate submission to CDCR/DAPO in support of Plaintiff's parole-discharge review and shall confirm that Plaintiff has no outstanding treatment obligations or restrictions related to his participation in the HOPE Program.

**C. Standard Settlement Terms**

No admission of liability by any party.
Full and final mutual general release of all claims, known and unknown, arising out of or related to the facts alleged in both actions, including a Civil Code § 1542 waiver.
Dismissal with prejudice of all claims against Ms. Palacios and HOPE Psychotherapy, Inc. in both the state and federal actions.
Explicit preservation of Plaintiff's claims against all other defendants, including Agent A. Derrick, Agent G. Noguchi, and the California Department of Corrections and Rehabilitation.
Confidentiality at your clients' election (or public resolution if preferred, consistent with CASOMB investigation transparency).
Each side to bear its own attorneys' fees and costs.
Standard mutual non-disparagement and no-admission language.

## II. BASIS FOR THIS PROPOSAL

This demand is grounded in documented harms, established legal precedent, and the significant litigation exposure your clients face if these matters proceed. I want to be transparent about the foundation of this figure:

**Documented Economic Losses.** My W-2 records reflect lost CDL wages of no less than $109,408 for the years 2022–2024 alone, measured against my but-for earning capacity of

$72,000 per year as a journeyman CDL holder. These losses continue to accrue at approximately $6,000 per month for each month I remain unable to pursue unrestricted CDL employment due to your clients' conduct.

**Severe and Ongoing Emotional Distress.** Five years of continuous GPS monitoring, curfew restrictions, geographic limitations, mandatory treatment participation with no achievable exit, and the stigma of being labeled "non-compliant" under a system designed to guarantee indefinite retention—this has caused and continues to cause severe psychological harm, including documented anxiety, sleep disruption, hypervigilance, and depression.

**The *Dwyer* Precedent.** In *In re Frederick Dwyer*, No. SC-080355A (San Mateo Superior Court, March 20, 2023), the court found that HOPE's blanket retention policy "vitiates the Legislature's directive" under Penal Code § 3008(d)(2). The court specifically found that HOPE exercised its discretion "in all cases to require participation … for the entire term of parole, apparently without reference to the individualized performance of each parolee." Despite this judicial condemnation, Ms. Palacios and the HOPE Program has continued applying the identical policy to my treatment through November 2025 and beyond.

**Active Regulatory Investigation.** The CASOMB complaints committee has opened an active review of my complaint concerning the HOPE Program and Ms. Palacios, substantially overlapping with the factual allegations in these actions. A parallel BBS complaint has been filed against Ms. Palacios (LMFT License No. 44555). These investigations create additional reputational and regulatory exposure for your clients independent of the litigation.

**Significant Punitive Exposure.** HOPE continued its blanket retention policy after both the *Dwyer* order (March 2023) and the April 2025 regulatory amendments to Title 15 CCR § 3574(f)(1). This conscious disregard—combined with the documented financial conflict of interest (a single parolee generates approximately $10,600 annually in baseline fees, with revenue terminating upon discharge)—supports a substantial punitive damages award.

**Litigation Costs Avoided.** A global settlement now eliminates your clients' exposure to discovery, depositions, expert witnesses, summary judgment, and trial in two separate courts. Those costs alone would easily exceed six figures, in addition to the risk of statutory multipliers and fee-shifting under § 1983.

## III. PROPOSED NEXT STEPS

If this proposal is within a range your clients are willing to consider, I am prepared to:

1. Participate in a formal mediation (retired judge or JAMS/ADR provider) if helpful;
2. Provide additional documentation supporting my economic losses and emotional distress;
3. Work cooperatively to draft a mutual release and settlement agreement.

I am available for a brief call or videoconference at your earliest convenience to discuss this proposal or answer any questions. If the monetary amount is the primary obstacle, I am open

to discussing structure—though a lump sum is strongly preferred for closure and simplicity.

## IV. CONFIDENTIALITY

This proposal is made in good faith and constitutes a confidential settlement communication protected under Federal Rule of Evidence 408 and California Evidence Code §§ 1152–1154. Its substance is inadmissible for any purpose other than enforcing a settlement agreement.

Mr. Malone, I believe this proposal presents a clean, pragmatic path forward that provides complete peace for your clients while fairly compensating the documented harms I have suffered. I have approached this matter with transparency and good faith, and I hope you will give this proposal fair consideration after conferring with Ms. Palacios and HOPE.

I look forward to your response.

Respectfully,

**Brendan Ngehsi Newanforbi**
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
bnn.cdl@gmail.com

---

**Bryan Malone** <bryan@sims-law.net> Tue, Mar 17 at 2:11 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Received, Mr. Newanforbi.

We will discuss all of this with our clients (Ms. Palacios and HOPE) and get back to you in the near future.

Bryan

Thank you,

Bryan L. Malone

Sims, Lawrence & Broghammer

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Roseville, CA  95661

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(916) 719-0363 (cellular)

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[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Request for Notice and Acknowledgment of Receipt (POS-015) for HOPE Psychotherapy, Inc. – Newanforbi v. Palacios et al. STK-CV-UF-2026-1032

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Wed, Mar 25 at 4:30 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

Good afternoon, Mr. Malone:

How are you? I hope all is well.

In the interest of streamlining service on the remaining defendant and avoiding any unnecessary additional steps or motion practice, I am attaching the Notice and Acknowledgment of Receipt form (POS-015) prepared for the corporate defendant HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM.

As you know, your firm and client have had actual notice of this action—including the summons, First Amended Complaint, all related filings, and the ongoing state tort claims (fraud, negligence, false imprisonment/unlawful restraint, intentional infliction of emotional distress, and intentional interference with prospective economic advantage)—since at least early March. Service has already been perfected on Ms. Palacios in her individual capacity.

For the sake of efficiency, I would respectfully ask that your client, presumably Ms. Shannon Smith as the agent of record, please complete and sign only the acknowledgment portion on the bottom half of the attached POS-015 (in the name of the corporation or by an authorized representative). The top half has already been completed by me with today's mailing date (March 25, 2026) and my signature as plaintiff. Once I receive the signed version from you, and once filed with the Court, I will promptly return a fully executed copy for your records, exactly as we did for Ms. Palacios.

Attached to this email is a copy of the Summons and Complaint, and Notice of Case Assignment.

Please let me know if this approach works for you or if there is any additional information I can provide. I remain happy to accommodate whatever method is most convenient on your end.

Thank you once more for your continued professionalism and assistance in moving this forward efficiently.

Sincerely,

Brendan Ngehsi Newanforbi

HOPE_POS-015.pdf, HOPE_Summons.pdf, HOPE_Complaint.pdf, HOPE_Notice of Case Assignment.pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

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**Newanforbi v. Palacios et al. /**
3 messages

---

**Kim Schmitt** <kschmitt@sims-law.net> Fri, Mar 27 at 9:12 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>, Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Newanforbi,

Our client HOPE Psychotherapy, Inc. dba HOPE Program, has authorized our office to accept service of the Summons and Complaint on its behalf. A copy of the signed Notice and Acknowledgement of Receipt is attached.

In a continuing effort for efficiency, instead of filing multiple responses on behalf of our clients, we are requesting defendants Katie Palacios and HOPE Psychotherapy, Inc., dba HOPE Program's response to the Complaint be due in 30 days - 4/27/26.

Please advise. Thank you.


Kim Schmitt

Legal Secretary

**SIMS, LAWRENCE & BROGHAMMER, LLP**

1478 Stone Point Dr. #450, Roseville, CA 95661

T: (916) 797-8881 F: (916) 253-1544

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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Wednesday, March 25, 2026 4:30 PM
**To:** Bryan Malone <bryan@sims-law.net>
**Cc:** Cynthia Lawrence <cynthia@sims-law.net>; June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>; Amber Krausse <Amber@sims-law.net>; SLB eservice <SLB-eservice@sims-law.net>
**Subject:** Request for Notice and Acknowledgment of Receipt (POS-015) for HOPE Psychotherapy, Inc. – Newanforbi v. Palacios et al. STK-CV-UF-2026-1032

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once filed with the Court, I will promptly return a fully executed copy for your records, exactly as we did for Ms. Palacios.

Attached to this email is a copy of the Summons and Complaint, and Notice of Case Assignment.

Please let me know if this approach works for you or if there is any additional information I can provide. I remain happy to accommodate whatever method is most convenient on your end.

Thank you once more for your continued professionalism and assistance in moving this forward efficiently.

Sincerely,

Brendan Ngehsi Newanforbi

Ntc and Ack-HOPE-State Court-signed (032526)(NEWpal).pdf

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, Mar 27 at 9:23 AM
To: Kim Schmitt <kschmitt@sims-law.net>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Ms. Schmitt,

Thank you for confirming service on HOPE and for sending the signed acknowledgment.

I agree that the deadline for both defendants' responses shall be April 27, 2026.

I will file the proof of service shortly.

Thank you,

Brendan Ngehsi Newanforbi

[Quoted text hidden]

---

**Kim Schmitt** <kschmitt@sims-law.net> Fri, Mar 27 at 9:25 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Thank you Mr. Newanforbi.

[Quoted text hidden]

# Federal Pleading Default & Renewed Settlement Demand – Newanforbi v. Derrick et al. (2:26-cv-00004-DJC-JDP)

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, Mar 30 at 8:00 AM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Counsel,

My communications with your office on Friday, March 27 were limited to the related state tort action in San Joaquin Superior Court (STK-CV-UF-2026-1032) and the POS-015 form. The extension I agreed to in that matter—to April 27, 2026—was a professional courtesy specific to that action and did not extend to the federal docket.

1. Federal Responsive Pleading – Missed Deadline

Upon reviewing the federal docket this morning, no responsive pleading, motion for extension, or stipulation has been filed on behalf of Ms. Palacios in Case No. 2:26-cv-00004-DJC-JDP. The 21-day deadline to respond to the First Amended Complaint expired on Friday, March 27, 2026.

I am prepared to stipulate to a brief one-week extension—until Monday, April 6, 2026, at 10:00 a.m.—for Ms. Palacios to file her responsive pleading. If you agree, please prepare a short Stipulation and Proposed Order for my signature. I will promptly sign and return it, and I will hold off on filing a Request for Entry of Default under Rule 55(a) to allow time for the stipulation to be filed.

I am extending this courtesy because resolution remains possible and I have no interest in default as an end in itself. That said, I think we both understand what a missed federal deadline means in a case of this nature. The complaint names Ms. Palacios in her individual capacity and carries an express punitive damages demand for intentional civil rights violations. Her carrier's obligation to defend does not extend to those damages—which means a Reservation of Rights letter, if one has not already issued, is coming. When it does, Ms. Palacios will need to reckon with what that means for her personally: her professional earnings, her retirement assets, her financial standing. Those are not abstract risks at this stage.

I also want to acknowledge something I mean sincerely: I have no interest in seeing your firm caught in the middle of what this situation could become. Once a Reservation of Rights issues and Ms. Palacios understands that her personal exposure is real, her interests and the interests of her insurer-appointed counsel are no longer the same. California law gives her remedies at that point, and a client in that position—frightened and feeling unprotected—will use them. I don't raise this to be provocative. I raise it because a clean resolution this week is genuinely the simplest outcome for everyone involved, including your office.

2. Renewed Global Settlement Demand – 7-Day Deadline

This communication also serves to renew the global settlement demand I formally transmitted to your office on March

18, 2026. My demand remains $450,000, alongside the issuance of a Treatment Completion Certificate consistent with Title 15 CCR § 3574(f)(1), California Penal Code § 3008(d)(2), and the CASOMB Treatment Completion Guidelines, to fully resolve all claims in both the federal and state actions against all defendants.

I want to be clear about what the certificate actually represents in practical terms: it is an individualized clinical determination that HOPE is already authorized to make under existing regulatory standards. It does not require an admission of liability. It is, in many respects, the most achievable component of this demand—and it directly addresses the regulatory exposure Ms. Palacios and the HOPE Program face in the CASOMB and BBS proceedings independent of this litigation.

On that point: I want to make sure your office is clear that the active CASOMB review and the BBS complaint against Ms. Palacios are not stayed by, and will not be resolved by, the passage of time in this litigation. Those proceedings run on their own track. A global settlement that addresses the underlying treatment determination is the only mechanism available to your clients that closes all of the open fronts simultaneously.

I would also note that the federal docket is moving independent of this demand. Judge Peterson's ruling on the pending motion is forthcoming, and the procedural posture of this case shifts materially once that order issues—in either direction. The window before a ruling is, practically speaking, the most efficient settlement opportunity either side is likely to see. I have no interest in timing this artificially; that is simply the reality of where we are.

This demand will remain open for exactly seven (7) calendar days—until Monday, April 6, 2026, at 10:00 a.m. After that time, the offer will be formally withdrawn and I will proceed with a Request for Entry of Default under Rule 55(a) in the federal action.

To be direct about what a resolution this week actually accomplishes for your clients: it closes two courts, ends the CASOMB and BBS exposure, avoids the cost and risk of discovery and trial in parallel jurisdictions, and does so on terms that are unlikely to be available once the litigation advances further. The terms on the table today reflect the posture of this case before this deadline lapsed. They will not improve from here.

I am available by email or phone to discuss the stipulation, the settlement terms, or both. I look forward to hearing from your office.

Sincerely,

Brendan Ngehsi Newanforbi

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Derrick et al. (2:26-cv-00004-DJC-JDP)

2 messages

**Bryan Malone** <bryan@sims-law.net> Mon, Mar 30 at 4:18 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good afternoon, Mr. Newanforbi.

At quick glance, the responsive pleading appears to have been inadvertently calendared for thirty days after the NAR. I apologize for the oversight and any inconvenience. Thank you for your professional courtesy in granting an extension of time to April 6, 2026.

I will also circle back to our client and her carrier about your informal settlement demand.

Thank you.

Bryan

Thank you,

Bryan L. Malone

Sims, Lawrence & Broghammer

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**Sent:** Monday, March 30, 2026 8:00 AM
**To:** Bryan Malone <bryan@sims-law.net>
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**Subject:** Federal Pleading Default & Renewed Settlement Demand – Newanforbi v. Derrick et al. (2:26-cv-00004-DJC-JDP)

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This communication also serves to renew the global settlement demand I formally transmitted to your office on March 18, 2026. My demand remains $450,000, alongside the issuance of a Treatment Completion Certificate consistent with Title 15 CCR § 3574(f)(1), California Penal Code § 3008(d)(2), and the CASOMB Treatment Completion Guidelines, to fully resolve all claims in both the federal and state actions against all defendants.

I want to be clear about what the certificate actually represents in practical terms: it is an individualized clinical determination that HOPE is already authorized to make under existing regulatory standards. It does not require an admission of liability. It is, in many respects, the most achievable component of this demand—and it directly addresses the regulatory exposure Ms. Palacios and the HOPE Program face in the CASOMB and BBS proceedings independent of this litigation.

On that point: I want to make sure your office is clear that the active CASOMB review and the BBS complaint against Ms. Palacios are not stayed by, and will not be resolved by, the passage of time in this litigation. Those proceedings run on their own track. A global settlement that addresses the underlying treatment determination is the only mechanism available to your clients that closes all of the open fronts simultaneously.

I would also note that the federal docket is moving independent of this demand. Judge Peterson's ruling on the pending motion is forthcoming, and the procedural posture of this case shifts materially once that order issues—in either direction. The window before a ruling is, practically speaking, the most efficient settlement opportunity either side is likely to see. I have no interest in timing this artificially; that is simply the reality of where we are.

This demand will remain open for exactly seven (7) calendar days—until Monday, April 6, 2026, at 10:00 a.m. After that time, the offer will be formally withdrawn and I will proceed with a Request for Entry of Default under Rule 55(a) in the federal action.

To be direct about what a resolution this week actually accomplishes for your clients: it closes two courts, ends the

CASOMB and BBS exposure, avoids the cost and risk of discovery and trial in parallel jurisdictions, and does so on terms that are unlikely to be available once the litigation advances further. The terms on the table today reflect the posture of this case before this deadline lapsed. They will not improve from here.

I am available by email or phone to discuss the stipulation, the settlement terms, or both. I look forward to hearing from your office.

Sincerely,

Brendan Ngehsi Newanforbi

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, Mar 30 at 4:57 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good afternoon, Mr. Malone,

Thank you for confirming the calendaring error.

Please forward the draft Stipulation and Proposed Order regarding the April 6 extension at your earliest convenience so I may review it and we can cure the docket.

I look forward to receiving your draft, and reviewing any response from your clients as to how they propose we come to an amicable global resolution.

Thank you,

Brendan Ngehsi Newanforbi

[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

**Newanforbi v. Derrick et al. (2:26-cv-00004-DJC-JDP) / Stipulation and Order**
3 messages

**Kim Schmitt** <kschmitt@sims-law.net> Thu, Ap
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>, Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Newanforbi, attached please find the Stipulation and [Proposed] Order Extending Time to Respond to Complaint. Please add your signature and return the Stip and Order to us and we will file it wit


Kim Schmitt

Legal Secretary

**SIMS, LAWRENCE & BROGHAMMER, LLP**

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---

**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Monday, March 30, 2026 4:57 PM
**To:** Bryan Malone <bryan@sims-law.net>
**Cc:** Cynthia Lawrence <cynthia@sims-law.net>; June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>; Amber Krausse <Amber@sims-law.net>
**Subject:** Re: Newanforbi v. Derrick et al. (2:26-cv-00004-DJC-JDP)

Good afternoon, Mr. Malone,

Thank you for confirming the calendaring error.

Please forward the draft Stipulation and Proposed Order regarding the April 6 extension at your earliest convenience so I may review it and we can cure the docket.

I look forward to receiving your draft, and reviewing any response from your clients as to how they propose we come to an amicable global resolution.

Thank you,

Brendan Ngehsi Newanforbi

On Mon, Mar 30, 2026 at 4:18 PM Bryan Malone <bryan@sims-law.net> wrote:

> Good afternoon, Mr. Newanforbi.
>
> At quick glance, the responsive pleading appears to have been inadvertently calendared for thirty days after the NAR. I apologize for the oversight and any inconvenience. 1

for your professional courtesy in granting an extension of time to April 6, 2026.

I will also circle back to our client and her carrier about your informal settlement demand.

Thank you.

Bryan

Thank you,

Bryan L. Malone

Sims, Lawrence & Broghammer

1478 Stone Point Drive, Suite 450

Roseville, CA 95661

(916) 797-8881

(916) 719-0363 (cellular)

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---

**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Monday, March 30, 2026 8:00 AM
**To:** Bryan Malone <bryan@sims-law.net>
**Cc:** Cynthia Lawrence <cynthia@sims-law.net>; June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>; Amber Krausse <Amber@sims-law.net>
**Subject:** Federal Pleading Default & Renewed Settlement Demand – Newanforbi v. Derrick et al. (2:26-cv-00004-DJC-JDP)

Counsel,

My communications with your office on Friday, March 27 were limited to the related state tort action in San Joaquin Superior Court (STK-CV-UF-2026-1032) and the POS-015 form. The extension I a
that matter—to April 27, 2026—was a professional courtesy specific to that action and did not extend to the federal docket.

1. Federal Responsive Pleading – Missed Deadline

Upon reviewing the federal docket this morning, no responsive pleading, motion for extension, or stipulation has been filed on behalf of Ms. Palacios in Case No. 2:26-cv-00004-DJC-JDP. The 21-da
to respond to the First Amended Complaint expired on Friday, March 27, 2026.

I am prepared to stipulate to a brief one-week extension—until Monday, April 6, 2026, at 10:00 a.m.—for Ms. Palacios to file her responsive pleading. If you agree, please prepare a short Stipulation a
Order for my signature. I will promptly sign and return it, and I will hold off on filing a Request for Entry of Default under Rule 55(a) to allow time for the stipulation to be filed.

I am extending this courtesy because resolution remains possible and I have no interest in default as an end in itself. That said, I think we both understand what a missed federal deadline means in a
nature. The complaint names Ms. Palacios in her individual capacity and carries an express punitive damages demand for intentional civil rights violations. Her carrier's obligation to defend does not
those damages—which means a Reservation of Rights letter, if one has not already issued, is coming. When it does, Ms. Palacios will need to reckon with what that means for her personally: her profe
earnings, her retirement assets, her financial standing. Those are not abstract risks at this stage.

I also want to acknowledge something I mean sincerely: I have no interest in seeing your firm caught in the middle of what this situation could become. Once a Reservation of Rights issues and Ms. P
understands that her personal exposure is real, her interests and the interests of her insurer-appointed counsel are no longer the same. California law gives her remedies at that point, and a client in
—frightened and feeling unprotected—will use them. I don't raise this to be provocative. I raise it because a clean resolution this week is genuinely the simplest outcome for everyone involved, includi
office.

2. Renewed Global Settlement Demand – 7-Day Deadline

This communication also serves to renew the global settlement demand I formally transmitted to your office on March 18, 2026. My demand remains $450,000, alongside the issuance of a Treatment
Certificate consistent with Title 15 CCR § 3574(f)(1), California Penal Code § 3008(d)(2), and the CASOMB Treatment Completion Guidelines, to fully resolve all claims in both the federal and state ac
against all defendants.

I want to be clear about what the certificate actually represents in practical terms: it is an individualized clinical determination that HOPE is already authorized to make under existing regulatory stand
not require an admission of liability. It is, in many respects, the most achievable component of this demand—and it directly addresses the regulatory exposure Ms. Palacios and the HOPE Program fac
CASOMB and BBS proceedings independent of this litigation.

On that point: I want to make sure your office is clear that the active CASOMB review and the BBS complaint against Ms. Palacios are not stayed by, and will not be resolved by, the passage of time in
litigation. Those proceedings run on their own track. A global settlement that addresses the underlying treatment determination is the only mechanism available to your clients that closes all of the o
simultaneously.

I would also note that the federal docket is moving independent of this demand. Judge Peterson's ruling on the pending motion is forthcoming, and the procedural posture of this case shifts materiall
order issues—in either direction. The window before a ruling is, practically speaking, the most efficient settlement opportunity either side is likely to see. I have no interest in timing this artificially; tha
the reality of where we are.

This demand will remain open for exactly seven (7) calendar days—until Monday, April 6, 2026, at 10:00 a.m. After that time, the offer will be formally withdrawn and I will proceed with a Request for E
Default under Rule 55(a) in the federal action.

To be direct about what a resolution this week actually accomplishes for your clients: it closes two courts, ends the CASOMB and BBS exposure, avoids the cost and risk of discovery and trial in para
jurisdictions, and does so on terms that are unlikely to be available once the litigation advances further. The terms on the table today reflect the posture of this case before this deadline lapsed. They
improve from here.

I am available by email or phone to discuss the stipulation, the settlement terms, or both. I look forward to hearing from your office.

Sincerely,

Brendan Ngehsi Newanforbi

Stip and Order to Ext Time to Resp.pdf

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Thu, Apr 2 at 10:45 AM
To: Kim Schmitt <kschmitt@sims-law.net>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good morning, Ms. Schmitt,

Attached is the executed Stipulation extending Defendant Palacios's responsive pleading deadline to April 6, 2026.

Thank you,

Brendan Ngehsi Newanforbi

[Quoted text hidden]
SIGNED Stipulation and [PROPOSED]Order Extending Time ToRespond To Complaint.pdf

---

**Kim Schmitt** <kschmitt@sims-law.net> Thu, Apr 2 at 11:11 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Thank you. We will get this filed with the court.

[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Courtesy Copy: Filed Proof of Service of Summons - Case No. STK-CV-UF-2026-0001032

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, Apr 6 at 11:51 AM
To: Kim Schmitt <kschmitt@sims-law.net>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

Good afternoon, Ms. Schmitt,

Please find attached a courtesy copy of the recently filed Proof of Service of Summons.

Here are the details regarding this filing:

- Court: San Joaquin County Superior Court
- Case Name: Newanforbi v. Palacios, et al.
- Case Number: STK-CV-UF-2026-0001032
- Party Served: HOPE Psychotherapy, Inc. (served via Janelle Aldana - Operations Manager)
- Date of Service: 03/26/2026
- Date Filed: April 6, 2026

This copy is being provided for your records.

Sincerely,

Brendan Ngehsi Newanforbi
Proof of Service of Summons on HOPE Psychotherapy, Inc.pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Automatic reply: Courtesy Copy: Filed Proof of Service of Summons - Case No. STK-CV-UF-2026-0001032

**Cynthia Lawrence** <cynthia@sims-law.net> Mon, Apr 6 at 11:52 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Hello Everyone!

I am in a mediation all day today.

I will check my emails when I can and will have my phone with me buyt expect delays.

Thank you,

Cynthia G. Lawrence
(916) 797-8881
(916) 548-6561 (cellular)

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Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Electronic Service: Plaintiff's Opposition to Motion to Dismiss - Newanforbi v. Derrick et al. (2:26-cv-00004-DJC-JDP)

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, Apr 7 at 3:09 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

Counsel,

Please see the attached PDF containing Plaintiff's Opposition to Defendant Katie Palacios' Notice of Motion and Motion to Dismiss Plaintiff's First Amended Complaint; Memorandum of Points and Authorities in Support Thereof, along with the corresponding Certificate of Service.

Physical copies of these documents were placed in the mail today, April 7, 2026, for filing with the Clerk of the Court for the Eastern District of California. I anticipate they will arrive at the Sacramento courthouse and be entered onto the docket on or around Thursday, April 9, 2026.

Sincerely,

Brendan Ngehsi Newanforbi
Opposition to Palacios MTD.pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Meet and Confer Request (CCP § 430.41) – Newanforbi v. Palacios, et al. (San Joaquin Superior Court Case No. STK-CV-UF-2026-1032)

4 messages

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Wed, Apr 15 at 9:09 AM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good morning Counsel,

I hope this message finds you well. I am writing to see if we can schedule a brief telephonic meet and confer ahead of the April 27 responsive pleading deadline, consistent with Section 430.41(a).

I'd welcome the opportunity to discuss any concerns your client may have with the Complaint, and I'm hopeful we can narrow or resolve issues before formal briefing.

I have availability during the following windows:

- Thursday, April 16: 9:00 AM – 12:00 PM
- Friday, April 17: 1:00 PM – 4:00 PM
- Monday, April 20: 9:00 AM – 3:00 PM
- Tuesday, April 21: 10:00 AM – 2:00 PM

If none of these work, I'm happy to accommodate an alternative time that works for your schedule. I look forward to hearing from you.

Thank you,

Brendan Ngehsi Newanforbi

(209) 801-4442

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, Apr 21 at 1:08 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good afternoon Counsel,

I hope this email finds you well.

I am following up on my April 15, 2026 meet-and-confer request regarding the responsive pleading deadline of April 27, 2026. I proposed several availability windows and remain happy to accommodate your schedule for a brief telephonic

conference to discuss any concerns with the Complaint and attempt to narrow or resolve issues.

Please let me know a convenient time this week, or confirm if you intend to file a responsive pleading by the agreed April 27 deadline. I remain committed to proceeding efficiently and in good faith.

Thank you for your attention to this matter.

Sincerely,

[Quoted text hidden]

---

**Kim Schmitt** <kschmitt@sims-law.net> Tue, Apr 21 at 4:19 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>, Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Newanforbi,

Attached please find correspondence for a Meet and Confer regarding a responsive pleading to your complaint. . Are you available tomorrow for a Zoom meeting to discuss this matter.


Kim Schmitt

Legal Secretary

**SIMS, LAWRENCE & BROGHAMMER, LLP**

1478 Stone Point Dr. #450, Roseville, CA 95661

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[Quoted text hidden]

To PLTF mc re Demurrer (042126).pdf

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, Apr 21 at 4:38 PM
To: Kim Schmitt <kschmitt@sims-law.net>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Ms. Schmitt,

Thank you for your correspondence and the attached letter.

I am available anytime tomorrow, Wednesday, April 22, for the proposed Zoom meeting. To move things forward, I suggest 10:00 AM or 1:30 PM, though I can adjust to fit Mr. Malone's schedule if those windows are unavailable.

Please send over the Zoom invitation at your earliest convenience. I look forward to discussing the points raised in your letter and narrowing the issues in this matter.

Best regards,

Brendan Ngehsi Newanforbi

[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Palacios, et al. (San Joaquin Superior Court Case No. STK-CV-UF-2026-1032) / Meet and Confer

2 messages

**Kim Schmitt** <kschmitt@sims-law.net> Wed, Apr
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Newanforbi, here is the Zoom link for today's meeting with Bryan Malone:

Topic: Newanforbi v. HOPE - Meet and Confer re responsive pleading

Time: Apr 22, 2026 01:30 PM Pacific Time (US and Canada)

Join Zoom Meeting

https://us06web.zoom.us/j/89340700602?pwd=bAJA1RlfCYds9qiUk8LRPBH2Aa2AGf.1

Meeting ID: 893 4070 0602

Passcode: 797111

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One tap mobile

+16694449171,,89340700602#,,,,*797111# US

+16699006833,,89340700602#,,,,*797111# US (San Jose)

---

Join by SIP

• 89340700602@zoomcrc.com

Join instructions

https://us06web.zoom.us/meetings/89340700602/invitations?signature=pg4hEaEWDJVP548WLt_XOMZ3eDZYJetz_F41rhpPAOo


Kim Schmitt

Legal Secretary

**SIMS, LAWRENCE & BROGHAMMER, LLP**

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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Tuesday, April 21, 2026 4:38 PM
**To:** Kim Schmitt <kschmitt@sims-law.net>
**Cc:** Bryan Malone <bryan@sims-law.net>; Cynthia Lawrence <cynthia@sims-law.net>; June Meinecke <june@sims-law.net>; Amber Krausse <Amber@sims-law.net>
**Subject:** Re: Meet and Confer Request (CCP § 430.41) – Newanforbi v. Palacios, et al. (San Joaquin Superior Court Case No. STK-CV-UF-2026-1032)

Ms. Schmitt,

Thank you for your correspondence and the attached letter.

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Please send over the Zoom invitation at your earliest convenience. I look forward to discussing the points raised in your letter and narrowing the issues in this matter.

Best regards,

Brendan Ngehsi Newanforbi

On Tue, Apr 21, 2026 at 4:19 PM Kim Schmitt <kschmitt@sims-law.net> wrote:

> Mr. Newanforbi,
>
> Attached please find correspondence for a Meet and Confer regarding a responsive pleading to your complaint. . Are you available tomorrow for a Zoom meeting to discuss this matter.


Kim Schmitt

Legal Secretary

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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Tuesday, April 21, 2026 1:09 PM
**To:** Bryan Malone <bryan@sims-law.net>
**Cc:** Cynthia Lawrence <cynthia@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>; June Meinecke <june@sims-law.net>; Amber Krausse <Amber@sims-law.net>
**Subject:** Re: Meet and Confer Request (CCP § 430.41) – Newanforbi v. Palacios, et al. (San Joaquin Superior Court Case No. STK-CV-UF-2026-1032)

Good afternoon Counsel,

I hope this email finds you well.

I am following up on my April 15, 2026 meet-and-confer request regarding the responsive pleading deadline of April 27, 2026. I proposed several availability windows and remain happy to accommod schedule for a brief telephonic conference to discuss any concerns with the Complaint and attempt to narrow or resolve issues.

Please let me know a convenient time this week, or confirm if you intend to file a responsive pleading by the agreed April 27 deadline. I remain committed to proceeding efficiently and in good faith.

Thank you for your attention to this matter.

Sincerely,

Brendan Ngehsi Newanforbi

(209) 801-4442

On Wed, Apr 15, 2026 at 9:09 AM Brendan Ngwa Nforbi <bnn.cdl@gmail.com> wrote:

> Good morning Counsel,
>
> I hope this message finds you well. I am writing to see if we can schedule a brief telephonic meet and confer ahead of the April 27 responsive pleading deadline, consistent with Section 430.41(a).
>
> I'd welcome the opportunity to discuss any concerns your client may have with the Complaint, and I'm hopeful we can narrow or resolve issues before formal briefing.
>
> I have availability during the following windows:
>
> - Thursday, April 16: 9:00 AM – 12:00 PM
> - Friday, April 17: 1:00 PM – 4:00 PM
> - Monday, April 20: 9:00 AM – 3:00 PM
> - Tuesday, April 21: 10:00 AM – 2:00 PM
>
> If none of these work, I'm happy to accommodate an alternative time that works for your schedule. I look forward to hearing from you.
>
> Thank you,

Brendan Ngehsi Newanforbi

(209) 801-4442

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Wed, Apr 22 at 10:24 AM
To: Kim Schmitt <kschmitt@sims-law.net>
Cc: Bryan Malone <bryan@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Ms. Schmitt,

Received with thanks. Looking forward to our meeting at 1:30 PM.

Best,

Brendan
[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Palacios – Follow-up to Meet and Confer / Filed FAC

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Wed, Apr 22 at 3:57 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

Mr. Malone,

Thank you for today's discussion. As mentioned, I've filed the First Amended Complaint as of right under CCP § 472(a). Attached is a conformed copy with filing stamp.

Thank you for agreeing to receive this via e-service. I look forward to receiving the okay from you to continue as such, as you have my consent to e-serve documents to me via email.

This pleading addresses the concerns you raised. I'm willing to meet and confer further on this operative version under CCP §§ 430.41/435.5 if you identify specific issues.

Best,

Brendan
FAC_STK-CV-UF-2026-1032.pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Agreement for Electronic Service of Documents - Newanforbi v. Palacios et al. (Case No. STK-CV-UF-2026-0001032)

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, May 4 at 4:17 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Malone,

I am writing to formally establish the protocol for service of documents in the matter of Newanforbi v. Palacios et al., Case No. STK-CV-UF-2026-0001032.

I note the Electronic Service Notice provided by your firm, which specifies that for effective electronic service on Sims, Lawrence & Broghammer, emails must include slb-eservice@sims-law.net.

Pursuant to California Code of Civil Procedure § 1010.6 and California Rules of Court, Rule 2.251, I am seeking your express written consent to the following:

Mutual Consent: All parties agree to accept electronic service of all discovery requests, motions, and other legal documents via email.

Service Address: I will utilize slb-eservice@sims-law.net as the primary address for service, as required by your firm's notice, while including Mr. Malone and the designated legal team as carbon copies.

Plaintiff Service: You may serve all documents on me at bnn.cdl@gmail.com, as listed in the First Amended Complaint.

Please confirm by return email that your office consents to this electronic service agreement. This will ensure our communications remain efficient and that the record of service is clear as I begin propounding discovery.

Thank you for your cooperation.

Sincerely,

Brendan Ngehsi Newanforbi
Plaintiff In Pro Per

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Patient Right of Access Request — Brendan Ngehsi Newanforbi (HIPAA / Cal. Health & Safety Code § 123110)

3 messages

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, May 5 at 2:51 PM
To: jaldana@hopeprogram.biz <jaldana@hopeprogram.biz>
Cc: pakins@hopeprogram.biz <pakins@hopeprogram.biz>, ssmith@hopeprogram.biz <ssmith@hopeprogram.biz>

To the HOPE Privacy Officer / Records Custodian:

I am Brendan Ngehsi Newanforbi, a patient of HOPE Psychotherapy, Inc. and a continuous participant in HOPE's treatment program since May 2021. Pursuant to the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"), 45 C.F.R. § 164.524; the California Confidentiality of Medical Information Act ("CMIA"), Cal. Civ. Code §§ 56.10–56.11; and the California Patient Access to Health Records Act, Cal. Health & Safety Code §§ 123100–123149.5, I submit this written request for access to and copies of records maintained by HOPE in my designated record set.

I request the following records:

1. The Treatment Completion Plan dated October 18, 2023, authored by HOPE clinician "Bernadette" (last name unknown to me), together with any drafts, revisions, addenda, supplements, or successor versions.

2. All CASOMB-protocol progress reviews, structured progress evaluations, and related risk-assessment documentation prepared for me at any time from May 2021 to the present.

3. All other Treatment Completion Plans, individual treatment plans, treatment contracts, and case-conceptualization documents prepared, drafted, or maintained for me from May 2021 to the present.

4. All progress notes, clinical assessments, group attendance records, and homework completion records maintained for me from May 2021 to the present.

5. Any document HOPE characterizes or has characterized internally as my "treatment plan," "completion plan," "discharge plan," "aftercare plan," or "relapse prevention plan," regardless of the title appearing on the face of the document.

Please produce these records in electronic form (PDF) by reply to this email. I am requesting electronic delivery as my preferred format under 45 C.F.R. § 164.524(c)(2)(ii). If HOPE cannot produce in that form, please notify me in writing and propose an alternative.

This request is made directly by me, the patient. It is not contingent on, and does not require, any request by my Parole Agent or any other third party. To the extent HOPE maintains a policy or practice requiring participants to route record requests through a parole agent, that policy does not relieve HOPE of its obligations to me as the patient under HIPAA and California law, and I expressly invoke my direct right of access here.

Applicable timelines:

• HIPAA: HOPE must act on this request within 30 days, with one possible 30-day extension upon written notice. 45 C.F.R. § 164.524(b)(2).

• California: HOPE must permit inspection within 5 working days and provide copies within 15 days of written request. Cal. Health & Safety Code § 123110(a)–(b).

If HOPE asserts that any portion of the requested records is exempt from disclosure or otherwise withheld, I request that HOPE specify in writing the exemption claimed, the legal authority for it, and the specific document or portion withheld, as required under 45 C.F.R. § 164.524(d) and Cal. Health & Safety Code § 123110(b).

Please confirm receipt of this request by reply email. A duplicate copy of this request is being sent by certified U.S. Mail, return receipt requested.

Sincerely,

Brendan Ngehsi Newanforbi
(209) 801-4442
bnn.cdl@gmail.com

---

**Shannon Smith** <ssmith@hopeprogram.biz> Tue, May 5 at 3:06 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Hello -

Please direct all requests to our counsel.

Thank you,
[Quoted text hidden]
--

HOPE PROGRAM

Shannon Smith, LCSW
Chief Executive Officer
ssmith@hopeprogram.biz

Main 510-764-2428 x 13 | Fax (510) 244-0126

HOPE Program | https://www.hopeprogram.biz
1245 B Street, Hayward, CA 94541

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**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, May 5 at 3:09 PM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Automatic reply: Patient Right of Access Request — Brendan Ngehsi Newanforbi (HIPAA / Cal. Health & Safety Code § 123110)

**Cynthia Lawrence** <cynthia@sims-law.net> Tue, May 5 at 3:09 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Hello Everyone!

I am out of the office in out of town depositions until Thursday morning.

I will check my emails when I can and will have access to my phone  but expect delays.

Thank you,

Cynthia G. Lawrence
(916) 797-8881
(916) 548-6561 (cellular)

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Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Palacios re Documents

3 messages

**Blaze Van Dine** <blaze@sims-law.net> Tue, May 12 at 10:34 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good morning Mr. Newanforbi,

My name is Blaze Van Dine. I'm an attorney at Sims, Lawrence & Broghammer and I will be taking over this matter for Mr. Malone. We are working on responses to your requests for production of documents, HIPPA, California Confidentiality of Medical Information Act, and California Patient Access to Health Record Act requests, which have divergent response timelines.

Would you be agreeable to a single response deadline of June 8, 2026, so that we may focus on getting you as complete a production as possible?

Additionally, my understanding is you recently emailed our client Katie Palacios some materials. I ask that you please refrain from contacting our clients directly regarding the lawsuit. Because they have counsel all communications regarding the case must come through us.

If you have any questions, or would like to set up a Zoom to discuss, just let me know.


Blaze Van Dine

Attorney at Law

1478 Stone Point Drive, Suite 450

Roseville, CA 95661

(916) 797-8881 F: (916) 253-1544

www.sims-law.net

Sims, Lawrence & Broghammer
CIVIL LITIGATION DEFENSE

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**ELECTRONIC SERVICE NOTICE: For effective electronic service on Sims, Lawrence & Broghammer your email MUST include** slb-eservice@sims-law.net**.**

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, May 12 at 11:31 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Good morning Mr. Van Dine,

Thank you again for your email. To confirm:

1. June 8 Deadline: I accept the extended deadline of June 8, 2026, for the discovery responses and related productions. I appreciate your willingness to work toward a complete response.

2. No Direct Client Contact: I understand and will direct all communications regarding this case solely to you as counsel.

3. E-Service Confirmation: I would like to obtain your express written consent to electronic service for all future documents under Code of Civil Procedure § 1010.6 and California Rules of Court, Rule 2.251.

I previously raised this with Mr. Malone and Ms. Schmitt on May 4, and while there was informal acknowledgment, I did not receive a written agreement confirming the e-service arrangement. Because I could not rely on an uncertain arrangement, I proceeded with service of the discovery requests via the sheriff. As a practical heads-up, your clients should anticipate a visit from the sheriff's office for service any day now.

To avoid similar issues going forward, please confirm by return email that you consent to mutual electronic service using slb-eservice@sims-law.net for your office and bnn.cdl@gmail.com for me. That way the record will be clear for all future pleadings, discovery, and correspondence.

I look forward to working with you.

Sincerely,

Brendan Ngehsi Newanforbi

[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Wed, May 13 at 11:39 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Thank you Mr. Newanforbi.

Yes, we consent to mutual e-service. All communications and correspondence of any manner related to the lawsuit shall be directed at us, not our clients. There is no need for service by the Sherrif. When serving pleadings, discovery, etc., please include SLB-eservice@sims-law.net on the email, in addition to the individuals listed on this email. Thank you for your cooperation.

Best regards,

[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

## Newanforbi v. Palacios re Meet and Confer [BVD]

**Blaze Van Dine** <blaze@sims-law.net> Thu, May 14 at 4:08 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>, Compulaw <compulaw@sims-law.net>

---

# Microsoft Teams meeting

**Join:** https://teams.microsoft.com/meet/233136958022636?p=WzB8HwLaJbJpcDQihl

Meeting ID: 233 136 958 022 636

Passcode: p75pn9C7

Need help? | System reference

For organizers: Meeting options

---

invite.ics

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Automatic reply: Newanforbi v. Palacios re Meet and Confer

**Cynthia Lawrence** <cynthia@sims-law.net>
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Fri, May 15 at 11:03 AM

Hello Everyone!

I am out of the office all day today. If this is an emergency or you need to get a message to me, please contact Amber at Amber@sims-law.net and she can get a hold of me.

I will check my emails when I can and will have access to my phone  but expect delays.

Thank you,

Cynthia G. Lawrence
(916) 797-8881
(916) 548-6561 (cellular)

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Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Katie Palacios / Demurrer

**Kim Schmitt** <kschmitt@sims-law.net> Fri, May 22 at 9:30 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Blaze Van Dine <blaze@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Newanforbi, attached please find the Demurrer on behalf of Katie Palacios and HOPE Program. San Joaquin County requires we file the Demurrer, provide them with several dates to hear the motion. The court will then return our Demurrer with a date for the hearing when the court is available. Once we have the actual scheduled date, we will re-serve you with the Demurrer paperwork

**DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S NOTICE OF DEMURRER AND DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT**

**DECLARATION OF BLAZE VAN DINE IN SUPPORT OF DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT**

**DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT**

**[PROPOSED] ORDER ON DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT**


Kim Schmitt

Legal Secretary

**SIMS, LAWRENCE & BROGHAMMER, LLP**

1478 Stone Point Dr. #450, Roseville, CA 95661

T: (916) 797-8881 F: (916) 253-1544

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Demurrer-(NEWpal) (052226)).pdf, Demurrer-Decl (NEWpal) (052226)).pdf, Demurrer-RJN (NEWpal) (052226)).pdf, Demurrer-PO (NEWpal) (052226)).pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

## Automatic reply: Newanforbi v. Palacios – Opposition to Demurrer and Supporting Papers

**Cynthia Lawrence** <cynthia@sims-law.net>
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Fri, May 22 at 4:16 PM

Hello Everyone!

I am out of the office in client tmeetings the rest of today. Please text me if this is an emergency.

I will check my emails when I can and will have access to my phone  but expect delays.

Thank you,

Cynthia G. Lawrence
(916) 797-8881
(916) 548-6561 (cellular)

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Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Palacios – Opposition to Demurrer and Supporting Papers

2 messages

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, May 22 at 4:13 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>
Bcc: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Counsel,

Please be advised that the Court has confirmed July 15, 2026, at 9:00 a.m. as the hearing date on Defendants' demurrer in Newanforbi v. Palacios, Case No. STK-CV-UF-2026-0001032.

The following documents were filed with the Court today, May 22, 2026, and are being served on you and your designated e-service email address in connection with that hearing:

- Plaintiff's Opposition to Demurrer to First Amended Complaint
- Declaration of Brendan Ngehsi Newanforbi in Support of Opposition to Demurrer
- Plaintiff's Request for Judicial Notice in Support of Opposition to Demurrer
- Plaintiff's Evidentiary Objections to Defendants' Request for Judicial Notice

This email constitutes service of conformed copies of the above-listed documents on Defendants Katie Palacios and HOPE Psychotherapy, Inc. dba HOPE Program, through their counsel of record, at the designated e-service address.

Regards,

Brendan Ngehsi Newanforbi

Opposition to Demurrer Pal.pdf, Evidentiary Pal Objections to Defendants RJN.pdf, Declaration Pal ISO Opposition.pdf, RJN Pal ISO Opposition.pdf

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, May 22 at 4:59 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

Counsel,

Please be advised that the version of Plaintiff's Request for Judicial Notice in Support of Opposition to Demurrer previously transmitted contained a minor error toward the end of the document.

Attached is the corrected version of Plaintiff's Request for Judicial Notice in Support of Opposition to Demurrer. Please disregard the earlier version and treat this corrected version as the operative filing.

This email constitutes service of the corrected Request for Judicial Notice on Defendants through their counsel of record at the designated e-service address.

Regards,

Brendan Ngehsi Newanforbi
[Quoted text hidden]
RJN Pal ISO Opposition.pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Service of Discovery in San Joaquin Superior Case and Renewal of Global Settlement Offer

3 messages

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, May 8 at 9:37 AM
To: Bryan Malone <bryan@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

Mr. Malone,

This email is to confirm that I am today serving written discovery in the San Joaquin County Superior Court action (STK-CV-UF-2026-1033) only, including the following documents propounding discovery: DISC001_SEC_4a2-Palacios and DISC001_SEC_4a2-HOPE1, along with the accompanying discovery requests.

In addition, I am renewing my early global settlement offer to resolve both the federal and state cases in their entirety for a total of **$85,000**. This offer is conditioned on my receipt of the November treatment completion certificate and is made solely for purposes of settlement discussions under the applicable rules of evidence and procedure. It is not a concession of liability, damages, or any other issue in dispute, and all of my rights and positions in the litigation are expressly reserved.

The offer is open for 21 days from the date of this email. I remain open to considering any reasonable counteroffers SLB may wish to propose.

Please let me know if SLB is interested in engaging in further settlement discussions in light of this renewed offer.

Best regards,

Brendan

DISC001_SEC_4a2 Palacios .pdf, DISC001_SEC_4a2 HOPE1.pdf

---

**Blaze Van Dine** <blaze@sims-law.net> Fri, May 22 at 6:34 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Newanforbi,

I write to provide you a response to your most recent global settlement demand of $85,000. You note this offer would "resolve both the federal and state cases in their entirety."

Our analysis of those cases establish they are without merit.

- *Newanforbi v. Palacios*, Case No. STK-CV-UF-2026-0001032

You are in receipt of our recently filed demurrer which outlines the defects of this action. The allegations of the First Amended Complaint reflect a failure to allege facts to state a claim and satisfy the exhaustion requirement. Even if the case somehow survives demurrer, the burden on you will only increase until trial, at which time you would have to convince a jury our clients caused you harm and damages. We

are confident that will never happen, as the evidence that our client's conduct was justified will be overwhelming. As such, see no value in settling this action.

- *Newanforbi v. Derrick, et al.*, Case No. 2:26-cv-0004 DJC JDP PS

Our motion to dismiss has been fully briefed and submitted. Again, it remains to be seen if this action will proceed past the dispositive motion stage. If it does, the evidence will be fatal to your claims. Keep in mind that in the federal court cases, you will need to obtain a unanimous jury verdict. As such, we see no risk of liability to our client. And, therefore, we see no value in settling this action.

- *Newanforbi v. Hope, et al.*, Case No. 2:26-cv-0195 TLN AC PS

This action has not even made it past the Court's screening. If it does, it will be subject to motion to dismiss for many of the reasons expressed in our other dispositive motions. Again, because the evidence is not in your favor, we see no risk of liability for our client. And, therefore, we see no value in settling this action.

While there is no value in settling these cases, there is value in dissuading frivolous litigation against our clients. As such, we are incentivized to vigorously defend these matters. That you have chosen to bring separate actions in separate courts will allow us multiple opportunities and tools to obtain the discovery we need to easily defend our clients. It also appears from the other litigation you have pursued that you acknowledged the harm you have attributed to our clients has, in fact, been caused by other parties. For example, a major component of the damages you seek from my clients relates to alleged economic damages from lost opportunities as a truck driver and emotional distress, anxiety, humiliation, etc.

However, in *Newanforbi v. State of California*, No. 2:25-cv-1460 DC CSK PS (E.D. Cal. 2025), you filed a declaration signed under penalty of perjury. Therein, you declared the following

2. On November 1, 2024, I was approached by CHP officers while parked on a dirt shoulder along Interstate 580 East in Livermore, California. I had pulled over to rest due to fatigue from a long drive, consistent with my safety training as a licensed commercial truck driver. I was not engaged in any criminal activity and had no intention of violating the law.

3. Without probable cause, a warrant, or my consent, CHP officers initiated contact under the pretext of a welfare check and escalated the encounter into a DUI investigation. I was forcibly removed from my vehicle, subjected to sobriety tests, and eventually arrested despite no evidence of impairment or illegal behavior.

4. The arrest led to a chemical test refusal allegation, which automatically triggered the suspension of my Class A commercial driver's license. This administrative penalty has disqualified me from my profession and deprived me of income since the incident. The suspension is scheduled to remain in effect until February 2026. Based on my average income, I estimate the total lost wages from the date of the suspension through February 2026 to be approximately $112,000.

You also declared:

8. I have suffered from ongoing mental health symptoms including anxiety, panic attacks, flashbacks, and even suicidal ideation. My sense of stability and self-worth has deteriorated, and I often feel hopeless about making it through to February 2026 without further breakdown.

9. I also feel an ongoing sense of shame and humiliation in my spiritual and social community. Among members of my church and those who knew me as a responsible, licensed professional, I now feel judged, alienated, and spiritually isolated.

10. These harms continue to affect my life today, both personally and professionally. The inability to work in my chosen career, coupled with the stigma of an unjust DUI record and parole complications, has caused long-term instability, suffering, and continued financial hardship.

As such, even assuming *arguendo* you could convince a jury that either of our clients did anything wrong, you have confirmed that your damages of lost employment and emotional distress were the result of your DUI arrest.

For the reasons stated above, we reject your settlement demand. I implore you to consider ending these frivolous lawsuits before you incur any financial responsibility and focus your efforts on something more productive.

Best regards,


# Blaze Van Dine

Attorney at Law

1478 Stone Point Drive, Suite 450

Roseville, CA 95661

(916) 797-8881 F: (916) 253-1544

www.sims-law.net

SLB

Sims, Lawrence & Broghammer

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[Quoted text hidden]

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Fri, May 22 at 6:55 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Van Dine,

Thank you for your response. I disagree with your assessment of the merits, particularly in light of the In re Dwyer order and Title 15 CCR § 3574(f)(1). I remain open to reasonable global settlement discussions that would resolve all matters and avoid further litigation expense for all parties.

In the meantime, please provide your responses to the outstanding discovery requests by the applicable deadlines.

Have a great weekend,

Brendan

[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Palacios / Hearing Date for Demurrer

2 messages

**Kim Schmitt** <kschmitt@sims-law.net> Tue, May 26 at 9:29 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: Blaze Van Dine <blaze@sims-law.net>, June Meinecke <june@sims-law.net>, Compulaw <compulaw@sims-law.net>

Mr. Newanforbi, attached please find the court-endorsed copies of defendants' Demurrer. The court scheduled the hearing for July 17, 2026 at 9:00 a.m. in Department 10A.


Kim Schmitt

Legal Secretary

**SIMS, LAWRENCE & BROGHAMMER, LLP**

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Demurrer-(NEWpal) (052226)).pdf, Demurrer-Decl (NEWpal) (052226)).pdf, Demurrer-PO (NEWpal) (052226)).pdf, Demurrer-RJN (NEWpal) (052226)).pdf, POS.pdf

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**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, May 26 at 10:03 AM
To: Kim Schmitt <kschmitt@sims-law.net>
Cc: Blaze Van Dine <blaze@sims-law.net>, June Meinecke <june@sims-law.net>, Compulaw <compulaw@sims-law.net>

Hi Ms. Schmitt,

Thank you for the update.

Confirmed the hearing will take place on July 15, 2026 at 9:00 a.m. in Department 10A.

Regards,

Brendan
[Quoted text hidden]

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Palacios / HOPE Program's Response to Request for Production of Documents

**Kim Schmitt** <kschmitt@sims-law.net> Mon, Jun 8 at 5:06 PM
To: bnn.cdl@gmail.com <bnn.cdl@gmail.com>
Cc: Blaze Van Dine <blaze@sims-law.net>, June Meinecke <june@sims-law.net>, Cynthia Lawrence <cynthia@sims-law.net>, Amber Krausse <Amber@sims-law.net>

Mr. Newanforbi, attached please find:

**DEFENDANT HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION'S RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE**


Kim Schmitt

Legal Secretary

**SIMS, LAWRENCE & BROGHAMMER, LLP**

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DRFT HOPE resp plntf RFA1.pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Newanforbi v. Palacios re Stipulated Protective Order

21 messages

**Blaze Van Dine** <blaze@sims-law.net> Mon, Jun 1 at 1:36 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Newanforbi,

In preparing the responses to Plaintiff's discovery requests, it appears to me that we need a protective order in this case, as there are documents that are sensitive and confidential at issue. Are you willing to stipulate to a protective order? If so we will prepare a proposed draft for your consideration.


Blaze Van Dine

Attorney at Law

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**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, Jun 1 at 2:03 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Van Dine,

Thank you for your email. I am open in principle to a stipulated protective order, provided the terms are reasonable, reciprocal, and do not unduly restrict my ability to use documents in connection with court filings, hearings, and trial in this matter.

Please send me your proposed draft at your earliest convenience. I will review it carefully and respond with any proposed modifications before we finalize any stipulation.

I would note that any protective order should, at a minimum: (1) apply equally to all parties; (2) permit use of designated materials in all court proceedings and filings in this action and other related cases, with appropriate redaction or sealing procedures as the Court may direct; (3) include a narrowly defined definition of what qualifies as "Confidential" or "Sensitive" material; and (4) provide a mechanism for challenging an improper confidentiality designation.

I look forward to receiving your draft.

Respectfully,

Brendan

[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Thu, Jun 4 at 10:07 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Hello Mr. Newanforbi,

Attached is a proposed stipulated protective order for your consideration. I believe it addresses all your concerns. Let me know if you have any questions or changes. Or if I have permission to affix your signature.

[Quoted text hidden]
Stip. Prot. Order State (NEWpal) (060426).docx

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Thu, Jun 4 at 1:07 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Van Dine,

Thank you for sending the proposed stipulated protective order. I have reviewed it carefully.

While I appreciate the framework, the draft as written does not address several of the conditions I outlined in my June 1 response — most notably, the requirement that designated materials be usable in other related cases. Section VI of your draft restricts use to "solely for the purpose of this Litigation" and prohibits use "for any other purpose whatsoever," which is directly contrary to the condition I stated.

I have prepared a redlined version of your draft with proposed modifications. The changes are tracked and attributed to me so your team can review them efficiently. In summary, the modifications address the following:

1. Section I.A — Narrowing the definition of "Confidential Information" to exclude institutional policies, training protocols, and clinical practice guidelines, which are central to the claims in this action and are not the type of private information a protective order is designed to shield.

2. Section III.B — Replacing the 30-day deadline for challenging confidentiality designations with a pre-trial deadline, subject to a good-faith meet-and-confer requirement.

3. Section IV.A — Adding a cross-reference to Section VI to harmonize the use restrictions.

4. Section VI — Replacing the absolute "this litigation only" restriction with a provision permitting use of designated materials in related pending litigation, including Newanforbi v. Derrick et al. (E.D. Cal. No. 2:26-cv-00004), subject to written notice, comparable protections in the receiving proceeding, and restrictions on third-party disclosure.

5. Section VIII — Adding a retention carve-out permitting retention of materials necessary for use in related proceedings identified in Section VI.

6. New Section X — Adding a provision permitting disclosures to governmental agencies, regulatory bodies, and professional licensing boards with jurisdiction over the conduct alleged in this action.

7. Signature Block — Correcting my legal name to Brendan Ngehsi Newanforbi and adding my pro per designation.

I want to emphasize that all modifications apply equally to both parties. If HOPE or Palacios is a party to related litigation in the future, they may also use Confidential Information from this case in that litigation under the same terms. These changes are intended to produce a fair and balanced order, not a one-sided one.

The redlined document is attached.

To be clear: you do not have my permission to affix my signature to any document. I will review and sign any finalized stipulation myself.

Please review the proposed modifications and let me know whether you are agreeable or wish to discuss further.

Thank you,

Brendan Ngehsi Newanforbi

[Quoted text hidden]
Redlined Protective Order .docx

---

**Blaze Van Dine** <blaze@sims-law.net> Thu, Jun 4 at 2:27 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Newanforbi,

Just for background, the draft I proposed was modeled after the Northern District's Proposed Stipulated Protective Order. But I understand your concerns and am willing to work with you. But that will take time. And I'm in a mediation all day and am jammed into mid next week. Given the sensitive subject matter of the documents, I don't think either of us want them produced without protections.

I propose we continue the June 8 production as to only the requests for production, special and form interrogatories to June 15, and we meet and confer over the course of the next week to iron out the details of the stipulated protective order? I would still produce responses to the Requests for Admissions on June 8 since Requests for Admissions do not touch upon documents.

Is that acceptable?

[Quoted text hidden]

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Thu, Jun 4 at 3:09 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Van Dine,

Thank you for your candid response. I understand you have a heavy schedule.

I agree to the following extension terms:

1. Responses to Requests for Production, Special Interrogatories, and Form Interrogatories — Set One, as propounded on both Defendant Katie Palacios and Defendant HOPE Psychotherapy, Inc. — are extended to June 15, 2026.

2. Responses to Requests for Admissions remain due June 8, 2026, as you proposed.

3. No documents designated as "Confidential" shall be produced until a stipulated protective order has been filed with and approved by the Court. If you wish to produce non-confidential documents before then, I have no objection.

4. The June 15 deadline is firm and not subject to further extension absent a written stipulation signed by both parties.

Please confirm these terms by reply email so that we have a clear written record of our agreement.

Regarding the protective order:

I am available for a brief meet-and-confer call on Tuesday, June 9 or Wednesday, June 10 at a time that works for your schedule. If a call is not possible, please provide written comments on my redlined version by June 10, so we have time to finalize the order before the June 15 production deadline.

I believe my redline is fair and balanced, and the changes apply equally to both parties. The three core protections I require are:

· Cross-use in my related federal case (Newanforbi v. Derrick et al., E.D. Cal. No. 2:26-cv-00004), which involves the same HOPE program and some of the same defendants;

· The ability to retain a copy of produced materials after the case concludes, for my own records and for use in related litigation; and

· The ability to make good-faith complaints to licensing boards and regulatory agencies, without waiving confidentiality protections.

These protections are necessary for me to stipulate. I am open to reasonable compromise on implementation details, but I cannot agree to an order that bars me from using evidence in my federal case or requires me to destroy records I may need.

Thank you for working with me on this. I look forward to resolving it promptly.
[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Thu, Jun 4 at 5:44 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Yes, we have an agreement as to the terms of the extension. I will follow up tomorrow with a response on the proposed stipulated protective order. Thank you and have a good evening.

[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Sat, Jun 6 at 8:49 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Newanforbi,

Attached is my revised proposed protective order in response to your edits. I rejected some of your changes, accepted others, and also modified some of you proposed changes. There is at least one comment where I provided authority in support.

Generally speaking:

- My client's policies and personnel files have to be included as a category of protected documents. They are quintessential protected information that courts routinely protect.
- I am willing to allow use of protected materials in Newanforbi v. Derrick et al., E.D. Cal. No. 2:26-cv-00004, provided we enter into a stipulated protective order in that action. (Ideally, once we agree to the parameters of this stipulated protective order, we can make minor changes for its use in the federal action). But use must be limited to the 2 lawsuits. Otherwise, the protection provided by a protective order is meaningless, as the purpose is to prevent use of confidential materials outside of litigation.
- I'm open to retention of confidential material UNTIL both actions are concluded. But thereafter confidential material must be returned or destroyed. Again, that is one of the protections provided by a protective order.
- I am open to the disclosure of confidential materials to regulatory/licensing agencies but only during the pendency of the litigation. Once the case has concluded, there is no reason for there to be potential use in perpetuity. And such use would violate the requirement that the confidential materials be returned or destroyed at the conclusion of the litigation.

Please review and provide feedback or advise if I have your permission to affix your signature. If after reviewing you want to schedule a time to meet and confer, just let me know. Thanks again for your cooperation.

[Quoted text hidden]
Redlined Protective Order (bvd).docx

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**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Sat, Jun 6 at 10:00 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Van Dine,

Thank you for your revised protective order. You have been very fair in most respects, and I appreciate your willingness to allow cross-use in the Derrick case, retention until both cases conclude, and regulatory complaints during the litigation.

I have two narrow requests to finalize the order:

1. Personal retention. I ask to retain one complete set of Confidential Information after the cases conclude, solely for my personal records and not for any competitive or commercial purpose. This is common for pro se litigants who cannot easily recreate records. I propose adding at the end of Section VIII: "Notwithstanding the foregoing, each Party may retain one complete set of Confidential Information for their personal records, subject to continued confidentiality obligations."

2. Regulatory complaints. The limitation to "during the pendency of this action" could prevent me from reporting serious misconduct that I discover late. I propose either removing that phrase entirely, or extending it to "during the pendency of this action and for one year thereafter." I am open to a reasonable compromise.

If you agree to these two changes, I will sign the order immediately. I will also work with you to enter a parallel protective order in the Derrick federal case.

Thank you for working with me on this.

Sincerely,

Brendan Ngehsi Newanforbi
[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Mon, Jun 8 at 2:52 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Newanforbi,

An issue has arisen for the person verifying HOPE's responses to your Requests for Admission. May I ask for a 1-day extension of HOPE responses to your Requests for Admission as to HOPE to tomorrow? We will still provide Ms. Palacios's responses today.

[Quoted text hidden]

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Mon, Jun 8 at 4:39 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Van Dine,

I will grant a one-day extension for HOPE's Responses to Requests for Admissions, to tomorrow, June 9, 2026, on the condition that you also provide me with a substantive response to my two proposed changes to the protective order (personal retention and extended regulatory complaints) by the end of today.

If you agree to those two changes, I will personally sign the protective order immediately and we can move forward. If you need to discuss further, please let me know.

I am not willing to extend the June 15 deadline for document production or interrogatory responses. Those remain firm.

Thank you for your cooperation.

Brendan Ngehsi Newanforbi
[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Mon, Jun 8 at 5:00 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Thank you Mr. Newanforbi. I appreciate the consideration. We were, however, able to overcome the situation and will be providing you with HOPE's responses to your Requests for Admission, Set One shortly. I will respond separately to stipulated protective order matter.

[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Mon, Jun 8 at 5:34 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Newanforbi, see my comments below.


# Blaze Van Dine

Attorney at Law

1478 Stone Point Drive, Suite 450

Roseville, CA 95661

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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Saturday, June 6, 2026 10:00 AM
**To:** Blaze Van Dine <blaze@sims-law.net>
**Cc:** June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
**Subject:** Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you for your revised protective order. You have been very fair in most respects, and I appreciate your willingness to allow cross-use in the Derrick case, retention until both cases conclude, and regulatory complaints during the litigation.

I have two narrow requests to finalize the order:

1. Personal retention. I ask to retain one complete set of Confidential Information after the cases conclude, solely for my personal records and not for any competitive or commercial purpose. This is common for pro se litigants who cannot easily recreate records.  [I'm not sure this is accurate.  Do you have a citation to any authority?] I propose adding at the end of Section VIII: "Notwithstanding the foregoing, each Party may retain one complete set of Confidential Information for their personal records, subject to continued confidentiality obligations."

2. Regulatory complaints. The limitation to "during the pendency of this action" could prevent me from reporting serious misconduct that I discover late. I propose either removing that phrase entirely, or extending it to "during the pendency

of this action and for one year thereafter." I am open to a reasonable compromise. [I'm concerned about our ability to keep track of this provision a year after litigation has ended. And, I think it's very unlikely that you would discover serious misconduct after the action has closed, but not during the action given discovery. What about "within 90 days of the termination of this action"?

[Quoted text hidden]

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Tue, Jun 9 at 10:10 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Van Dine,

Thank you for your response on the protective order.

After considering your points, I agree to withdraw my request for personal retention of confidential materials after the cases conclude. The order may require return or destruction as you propose.

On regulatory complaints, I accept your proposed 90-day window after termination of this action. To avoid any later dispute about timing, please include a brief clarifying sentence: "The 90-day period shall be tolled during any pending regulatory investigation that was initiated within that period." This is a reasonable safeguard and does not expand the substantive right.

If these modifications are acceptable, please send me a final clean version of the protective order reflecting our agreements (including the 90-day regulatory complaints provision and the removal of the personal retention clause). I will personally sign it and return it to you for filing.

Thank you for working with me to finalize this. I look forward to receiving the final order so we can proceed with the June 15 document production.

Regards,

Brendan Ngehsi Newanforbi

[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Tue, Jun 9 at 6:20 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

I'm glad we've been able to make substantial progress. See my comment below.

Blaze Van Dine

Attorney at Law

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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Tuesday, June 9, 2026 10:10 AM
**To:** Blaze Van Dine <blaze@sims-law.net>
**Cc:** June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
**Subject:** Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you for your response on the protective order.

After considering your points, I agree to withdraw my request for personal retention of confidential materials after the cases conclude. The order may require return or destruction as you propose.

On regulatory complaints, I accept your proposed 90-day window after termination of this action. To avoid any later dispute about timing, please include a brief clarifying sentence: "The 90-day period shall be tolled during any pending

regulatory investigation that was initiated within that period." [I'm concerned this is might unnecessarily cause confusion. As agreed now, you can submit confidential information in support of a regulatory complaint at any time during the litigation and 90 days after the litigation ends. Tolling wouldn't be at issue.] This is a reasonable safeguard and does not expand the substantive right.

[Quoted text hidden]

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Wed, Jun 10 at 9:06 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Van Dine,

Thank you — I agree we have made substantial progress, and I appreciate your willingness to work through the details.

I have no interest in making this process more burdensome than necessary — my goal is simply to get the order in place so we can both move forward efficiently.

Once the protective order is finalized and the June 15 production is complete, I expect the path forward will become clearer for both sides.

If there is a way to avoid unnecessary expenditure of time and resources beyond that point, I am open to having that conversation. For now, please send the final version when you are ready, I'll review it then sign it and return it if everything is in order.

Regards,

Brendan Ngehsi Newanforbi

[Quoted text hidden]

---

**Blaze Van Dine** <blaze@sims-law.net> Wed, Jun 10 at 5:33 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Excellent. See attached.

[Quoted text hidden]
Redlined Protective Order (bvd).docx

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Thu, Jun 11 at 5:03 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Mr. Van Dine,

Attached is my signed copy of the Stipulated Protective Order.

Thank you.

Brendan Ngehsi Newanforbi
[Quoted text hidden]
Redlined Protective Order SIGNED.docx

---

**Blaze Van Dine** <blaze@sims-law.net> Sat, Jun 13 at 4:16 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Thank you Mr. Newanforbi. The attached document, however, was not signed. You can type a signature such as "/s/ Brendan Ngehsi Newanforbi". Or you can print, sign using a pen, and email me a picture of the signed page. When I receive your signed version, we will apply our signature stamp and file with the Court.

[Quoted text hidden]
Redlined Protective Order SIGNED.docx

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Sat, Jun 13 at 6:11 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Good evening Mr. Van Dine,

Thank you for letting me know. Attached is the Stipulated Protective Order in PDF format with my electronic signature: /s/ Brendan Ngehsi Newanforbi.

Please confirm receipt and let me know once the order has been filed with the Court.

Regards,

Brendan Ngehsi Newanforbi
[Quoted text hidden]
Newanforbi v. Palacios re Stipulated Protective Order.pdf

---

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Sat, Jun 13 at 6:12 PM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

[Quoted text hidden]
Stipulated Protective Order SIGNED.pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Service of Plaintiff's Special Interrogatories, Set Two (Palacios & HOPE)

**Brendan Ngwa Nforbi** <bnn.cdl@gmail.com> Wed, Jun 17 at 11:09 AM
To: Blaze Van Dine <blaze@sims-law.net>
Cc: Cynthia Lawrence <cynthia@sims-law.net>, Bryan Malone <bryan@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>, June Meinecke <june@sims-law.net>, Amber Krausse <Amber@sims-law.net>, SLB eservice <slb-eservice@sims-law.net>

Mr. Van Dine,

Please find attached Plaintiff's Special Interrogatories, Set Two, propounded on Defendant Katie Palacios and Defendant HOPE Psychotherapy, Inc., respectively. Also attached are the required Declarations for Additional Discovery pursuant to CCP §§ 2030.040 and 2030.050.

These are served by electronic mail per our agreement. Responses are due within 30 days of service.

Please confirm receipt.

Brendan Ngehsi Newanforbi
SROG Set Two PALACIOS NEWpal .pdf, SROG Set Two HOPE NEWpal .pdf

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

# Re: Contains JavaScript: Re: Newanforbi v. Palacios re Stipulated Protective Order

3 messages

**Blaze Van Dine** <blaze@sims-law.net> Sun, Jun 14 at 11:23 AM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Cc: June Meinecke <june@sims-law.net>, Kim Schmitt <kschmitt@sims-law.net>

Thank you Mr. Newanforbi. We will file the proposed stipulated protective order with the Court. FYI, courts typically take a few days to get these signed off. We are producing discovery responses to tomorrow. Responsive documents protected by the confidentiality provision will be produced upon the Court's entry of the stipulated protective order.


Blaze Van Dine

Attorney at Law

1478 Stone Point Drive, Suite 450
Roseville, CA 95661
(916) 797-8881 F: (916) 253-1544
www.sims-law.net

SLB
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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Saturday, June 13, 2026 6:12 PM
**To:** Blaze Van Dine <blaze@sims-law.net>
**Cc:** June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
**Subject:** Contains JavaScript: Re: Newanforbi v. Palacios re Stipulated Protective Order

Good evening Mr. Van Dine,

Thank you for letting me know. Attached is the Stipulated Protective Order in PDF format with my electronic signature: /s/ Brendan Ngehsi Newanforbi.

Please confirm receipt and let me know once the order has been filed with the Court.

Regards,

Brendan Ngehsi Newanforbi

On Sat, Jun 13, 2026 at 6:11 PM Brendan Ngwa Nforbi <bnn.cdl@gmail.com> wrote:

> Good evening Mr. Van Dine,
>
> Thank you for letting me know. Attached is the Stipulated Protective Order in PDF format with my electronic signature: /s/ Brendan Ngehsi Newanforbi.
>
> Please confirm receipt and let me know once the order has been filed with the Court.
>
> Regards,
>
> Brendan Ngehsi Newanforbi
>
> On Sat, Jun 13, 2026 at 4:16 PM Blaze Van Dine <blaze@sims-law.net> wrote:
>
> > Thank you Mr. Newanforbi. The attached document, however, was not signed. You can type a signature such as "/s/ Brendan Ngehsi Newanforbi". Or you can print, sign using a pen, and email me a picture of the signed page. When I receive your signed version, we will apply our signature stamp and file with the Court.
> >
> > 
> > Blaze Van Dine
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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Thursday, June 11, 2026 5:03 PM
**To:** Blaze Van Dine <blaze@sims-law.net>
**Cc:** June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
**Subject:** Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Attached is my signed copy of the Stipulated Protective Order.

Thank you.

Brendan Ngehsi Newanforbi

On Wed, Jun 10, 2026 at 5:33 PM Blaze Van Dine <blaze@sims-law.net> wrote:

> Excellent. See attached.
>
> Blaze Van Dine

Attorney at Law

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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Wednesday, June 10, 2026 9:07 AM
**To:** Blaze Van Dine <blaze@sims-law.net>
**Cc:** June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
**Subject:** Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you — I agree we have made substantial progress, and I appreciate your willingness to work through the details.

I have no interest in making this process more burdensome than necessary — my goal is simply to get the order in place so we can both move forward efficiently.

Once the protective order is finalized and the June 15 production is complete, I expect the path forward will become clearer for both sides.

If there is a way to avoid unnecessary expenditure of time and resources beyond that point, I am open to having that conversation. For now, please send the final version when you are ready, I'll review it then sign it and return it if everything is in order.

Regards,

Brendan Ngehsi Newanforbi

On Tue, Jun 9, 2026 at 6:20 PM Blaze Van Dine <blaze@sims-law.net> wrote:

> I'm glad we've been able to make substantial progress.  See my comment below.
>
> 
> Blaze Van Dine
>
> Attorney at Law
>
> 1478 Stone Point Drive, Suite 450
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> Roseville, CA 95661
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**From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
**Sent:** Tuesday, June 9, 2026 10:10 AM
**To:** Blaze Van Dine <blaze@sims-law.net>
**Cc:** June Meinecke <june@sims-law.net>; Kim Schmitt <kschmitt@sims-law.net>
**Subject:** Re: Newanforbi v. Palacios re Stipulated Protective Order

Mr. Van Dine,

Thank you for your response on the protective order.

After considering your points, I agree to withdraw my request for personal retention of confidential materials after the cases conclude. The order may require return or destruction as you propose.

On regulatory complaints, I accept your proposed 90-day window after termination of this action. To avoid any later dispute about timing, please include a brief clarifying sentence: "The 90-day period shall be tolled during any pending regulatory investigation that was initiated within that period." [I'm concerned this is might unnecessarily cause confusion. As agreed now, you can submit confidential information in support of a regulatory complaint at any time during the litigation and 90 days after the litigation ends. Tolling wouldn't be at issue.] This is a reasonable safeguard and does not expand the substantive right.

If these modifications are acceptable, please send me a final clean version of the protective order reflecting our agreements (including the 90-day regulatory complaints provision and the removal of the personal retention clause). I will personally sign it and return it to you for filing.

Thank you for working with me to finalize this. I look forward to receiving the final order so we can proceed with the June 15 document production.

Regards,

Brendan Ngehsi Newanforbi

On Mon, Jun 8, 2026 at 5:34 PM Blaze Van Dine <blaze@sims-law.net> wrote:

> Mr. Newanforbi, see my comments below.
>
> 
> # Blaze Van Dine
>
> Attorney at Law
>
> 1478 Stone Point Drive, Suite 450
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> Roseville, CA 95661
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> 
>
> ---
>
> **From:** Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
> **Sent:** Saturday, June 6, 2026 10:00 AM
> **To:** Blaze Van Dine <blaze@sims-law.net>